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CONSTITUTIONAL LAW

Chapter 1: Constitutional Foundations

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CHAPTER 1: CONSTITUTIONAL FOUNDATIONS

Chapter Overview: This chapter establishes the foundational knowledge required for all constitutional analysis. Understanding the constitutional architecture—the relationship between the Constitution Act 1867, the Constitution Act 1982, and unwritten principles—is essential before tackling division of powers or Charter questions.

1.1 THE CONSTITUTIONAL ARCHITECTURE

Canada's Constitution is neither wholly written nor entirely unwritten. It consists of multiple sources that together establish the supreme law of Canada. Section 52(2) of the Constitution Act, 1982 provides that the Constitution of Canada includes:

- The Constitution Act, 1867 (formerly the British North America Act)
- The Constitution Act, 1982 (which includes the Charter)
- Amendments to these Acts
- Unwritten constitutional principles recognized by courts
- Constitutional conventions

KEY CASE: Reference re Secession of Quebec, [1998] 2 SCR 217

The Supreme Court identified four foundational unwritten constitutional principles that inform constitutional interpretation: (1) federalism, (2) democracy, (3) constitutionalism and the rule of law, and (4) protection of minorities. These principles are 'assumed' by the written Constitution and may give rise to substantive legal obligations.

Exam Trigger: Use when interpreting ambiguous constitutional provisions or when analyzing fundamental constitutional change. The principles work together—not in isolation.

1.2 THE CONSTITUTION ACT 1867 (BNA ACT)

The Constitution Act, 1867 established Canada as a federal state with a parliamentary system of government. Its key provisions include:

Division of Legislative Powers (Sections 91-95)

- Section 91: Enumerates federal powers (criminal law, trade and commerce, banking, etc.)
- Section 92: Enumerates provincial powers (property and civil rights, hospitals, municipalities, etc.)
- Section 92A: Added in 1982, expands provincial powers over natural resources
- Section 93: Provincial power over education (subject to denominational school protections)
- Section 95: Concurrent jurisdiction over agriculture and immigration (federal paramountcy)

Executive and Legislative Structure

- Section 9: Executive power vested in the Queen
- Section 17: Parliament consists of the Queen, Senate, and House of Commons
- Section 96: Power to appoint superior court judges (foundation for judicial independence)

EXAM TIP: When analyzing division of powers questions, always identify the specific head of power in s.91 or s.92 that applies. Do not simply say 'federal' or 'provincial' jurisdiction—cite the specific subsection.

1.3 THE CONSTITUTION ACT 1982

The Constitution Act, 1982 accomplished three monumental changes:

1. Patriation of the Constitution

Before 1982, Canada's Constitution was an Act of the British Parliament. The Constitution Act, 1982 patriated (brought home) the Constitution, making Canada fully sovereign in constitutional matters. The UK Parliament no longer has authority to amend Canada's Constitution.

2. The Canadian Charter of Rights and Freedoms

The Charter (Part I of the Constitution Act, 1982) guarantees fundamental rights and freedoms. Key provisions include:

- Section 1: Rights subject to reasonable limits
- Sections 2-23: Guaranteed rights (fundamental, legal, equality, language)
- Section 24: Enforcement of Charter rights
- Section 32: Application of the Charter to government
- Section 33: Notwithstanding clause (override)
- Section 52: Constitutional supremacy

3. Domestic Amending Procedures (Part V)

Part V (sections 38-49) established five different procedures for amending the Constitution, depending on what is being amended. This eliminated the need for British involvement in constitutional amendments.

CAUTION: The Charter applies only to government action (s.32), not private disputes. Always check whether the Charter applies before conducting Charter analysis. Private actors are only subject to the Charter when implementing government policy or exercising delegated governmental authority (*Eldridge v BC*).

1.4 UNWRITTEN CONSTITUTIONAL PRINCIPLES

Unwritten constitutional principles are fundamental norms underlying the Constitution that are not expressly stated in constitutional text but have constitutional force.

The Four Foundational Principles (Secession Reference)

1. Federalism

Federalism recognizes diversity within unity. It allocates powers between federal and provincial governments, neither of which is subordinate to the other. The principle supports broad interpretation of both federal and provincial powers and rejects doctrines that unduly restrict one level's authority.

2. Democracy

Democracy means government by the people through elected representatives accountable to citizens. It requires free and fair elections, universal suffrage, government accountability, and protection of dissent. However, democracy cannot override other constitutional principles—majority rule is constrained by constitutional rights.

3. Constitutionalism and Rule of Law

Constitutionalism requires that government act through law and is subject to law. The Constitution is supreme law binding all governmental actors. The rule of law requires that law is supreme over arbitrary power, laws must be accessible and intelligible, and everyone is subject to the same law.

4. Protection of Minorities

The Constitution protects minorities from majority tyranny. Minority rights cannot be overridden by majority will. This principle protects religious, linguistic, and cultural minorities and is reflected in Charter rights and the federal structure itself.

Limits of Unwritten Principles:

British Columbia v. Imperial Tobacco (2005) established that unwritten principles cannot be used to invalidate legislation that complies with the written Constitution. Principles inform interpretation but do not create freestanding grounds for striking down laws.

EXAM TIP: When discussing unwritten principles, always acknowledge their limits. They inform constitutional interpretation and may create duties in extraordinary circumstances (like the duty to negotiate secession), but they cannot override express constitutional text or invalidate otherwise valid legislation.

1.5 THE LIVING TREE DOCTRINE

KEY CASE: *Edwards v Canada (AG) (The Persons Case)*, [1930] AC 124 (PC)

In *Edwards*, the Privy Council held that the Constitution is a 'living tree capable of growth and expansion.' The Constitution must be interpreted purposively to meet new social realities, not frozen in its 1867 meaning.

Principles of the Living Tree Doctrine:

- The Constitution is not locked in the past—it evolves with society
- Interpretation must be 'large and liberal,' not technical or formalistic
- The Constitution's purpose and principles guide interpretation
- New social realities may require constitutional protection not contemplated in 1867 or 1982

Exam Trigger: Use the Living Tree Doctrine when arguing for progressive interpretation of constitutional provisions. It supports expanding rights and adapting constitutional concepts to modern contexts. However, the doctrine does not permit courts to rewrite the Constitution—interpretation must still be grounded in constitutional text and structure.

1.6 CONSTITUTIONAL INTERPRETATION METHODS

Courts use several interpretive methods when analyzing constitutional provisions:

Textual Interpretation: Focuses on the ordinary meaning of the constitutional text. The words of the Constitution are the starting point for all interpretation.

Structural Interpretation: Examines how a provision fits within the broader constitutional structure. Considers the relationship between different constitutional provisions and institutions.

Purposive Interpretation: Identifies the purpose or object of a constitutional provision and interprets it to achieve that purpose. The Living Tree Doctrine supports purposive interpretation.

Historical Interpretation: Considers the historical context in which constitutional provisions were enacted. Understanding the 'mischief' or problem a provision addressed can inform its interpretation.

Doctrinal Interpretation: Relies on judicial precedents that have interpreted constitutional provisions. Stare decisis (following precedent) provides stability and predictability in constitutional law.

EXAM TIP: In exam answers, identify which interpretive approach you are using and why. For example: 'Applying a purposive interpretation consistent with the Living Tree Doctrine, section 15 should be understood to protect substantive equality, not merely formal equality.' This demonstrates sophisticated legal reasoning.